

Determination that Only One Source is Reasonably Available (Including Brand Name) – FAR Part 13 Acquisitions under the SAT

MEMORANDUM TO THE FILE

Subj: DETERMINATION THAT ONLY ONE SOURCE IS REASONABLY AVAILABLE FOR A FAR PART 13 ACQUISITION UNDER THE SIMPLIFIED ACQUISITION THRESHOLD

I. BACKGROUND:

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).
2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement (or portion of the requirement to be sole-sourced) is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE:

CLIN 0009: Unicam Kit, SC High Performance, Corning, P/N: 95-200-41-Z
CLIN 0021: Housing, Connector, Corning, P/N: WCH-02P

The above items are being used exclusively throughout the Camp Lejeune Area for installation and expedient repair of Copper and Fiber optic Cables. The required delivery date is September 30, 2026.

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING *(select all that apply)*:

A. ☐ **ONLY ONE RESPONSIBLE SOURCE** *(select all that apply)*:

1. ☐ **RESTRICTIVE RIGHTS**. The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.
2. ☐ **EXCLUSIVE LICENSING AGREEMENTS**. The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

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3. OTHER REASONS.

B. X BRAND NAME

Item required must be a brand name, product, or feature of a product, particular to one manufacturer.

Base Telephone Personnel are trained to install and repair this equipment. Corning is the exclusive manufacturer used aboard Camp Lejeune and surrounding Bases to provide for continuity and reduce down time due to mismatched materials. Market research confirms that no other manufacturer produces connectors that are plug-and-play compatible with the currently installed Corning system. Purchasing another manufacturers equipment will require personnel to be trained on the equipment to be able to install and maintain the services provided.

C. URGENT AND COMPELLING. The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

1. Date on which the requirement was first identified:
2. Required delivery date/period of performance:
3. Explanation of why delivery/commencement of services by the date mentioned above is required:

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Distribution List for DL ONLY Limited Dissemination Control

- MCFCS Personnel
- LB Personnel
- Procurement Team Personnel (to include but not limited to: Legal, Customers/Requirements Owners, Source Selection Personnel, Small Business Representatives)
- Any other individual designated by the KO

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II. DESCRIPTION OF ITEM OR SERVICE:

CLIN 0005, Telephone, Wall, Cortelco, P/N: 255447-VBA-20M

CLIN 0008: Telephone, 1-Line Speakerphone, Black, CORTELCO, P/N: 912500TP227S

The above item is being used exclusively throughout the Camp Lejeune Area for installation and expedient repair of the Voice Network. The required delivery date is September 30, 2026.

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING *(select all that apply)*:

A. ☐ **ONLY ONE RESPONSIBLE SOURCE** *(select all that apply)*:

1. ☐ **RESTRICTIVE RIGHTS**. The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.
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3. OTHER REASONS.

B. X BRAND NAME

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Base Telephone Personnel are trained to install and repair this equipment. CORTELCO is the exclusive manufacturer used aboard Camp Lejeune and surrounding Bases to provide for continuity and reduce down time due to mismatched materials. Market research confirms that no other manufacturer produces connectors that are plug-and-play compatible with the currently installed Cortelco system. Purchasing another manufacturers equipment will require personnel to be trained on the equipment to be able to install and maintain the services provided.

C. URGENT AND COMPELLING. The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

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II. DESCRIPTION OF ITEM OR SERVICE:

CLIN 0001, Closure, Dome, Preformed Line Products, P/N: 80061057

CLIN 0002, End Plate, Preformed Line Products, P/N: 800081098

CLIN 0011: Dome Closure Cable Restraint Bracket, Preformed Line Products, P/N: COYW622P001

CLIN 0023: Closure, Dome, Preformed Line Products, P/N: COY1-001

The above items are being used exclusively throughout the Camp Lejeune Area for installation and expedient repair of Copper and Fiber optic Cables. The required delivery date is September 30, 2026.

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING *(select all that apply)*:

A. ☐ **ONLY ONE RESPONSIBLE SOURCE** *(select all that apply)*:

1. ☐ **RESTRICTIVE RIGHTS**. The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.

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2. ☐ **EXCLUSIVE LICENSING AGREEMENTS.** The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.
3. ☐ **OTHER REASONS.**

B. ☒ *BRAND NAME*

Item required must be a brand name, product, or feature of a product, particular to one manufacturer.

Base Telephone Personnel are trained to install and repair this equipment. Preformed Line Products is the exclusive manufacturer used aboard Camp Lejeune and surrounding Bases to provide for continuity and reduce down time due to mismatched materials. Market research confirms that no other manufacturer produces connectors that are plug-and-play compatible with the currently installed Preformed Line system. Purchasing another manufacturers equipment will require personnel to be trained on the equipment to be able to install and maintain the services provided.

C. ☐ *URGENT AND COMPELLING.* The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

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II. DESCRIPTION OF ITEM OR SERVICE:

CLIN 0003, Faceplate, 10GMax, Siemon, P/N: 10GMX-FP-S-02-02
CLIN 0004, Faceplate, 10GMax, Siemon, P/N: 10GMX-FP-S-04-02
CLIN 0016, Blank, ZMAX, Siemon, P/N: MX-BL-02

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2. ☐ **EXCLUSIVE LICENSING AGREEMENTS.** The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.
3. ☐ **OTHER REASONS.**

B. ☒ *BRAND NAME*

Item required must be a brand name, product, or feature of a product, particular to one manufacturer.

Base Telephone Personnel are trained to install and repair this equipment. SIEMON is the exclusive manufacturer used aboard Camp Lejeune and surrounding Bases to provide for continuity and reduce down time due to mismatched materials. Market research confirms that no other manufacturer produces connectors that are plug-and-play compatible with the currently installed Siemon system. Purchasing another manufacturers equipment will require personnel to be trained on the equipment to be able to install and maintain the services provided.

C. ☐ *URGENT AND COMPELLING.* The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

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